



A COMMUNITY OF CHOICE

Planning and Development Department

2101 O'Neil Avenue, Suite 202, Cheyenne WY 82001
(Phone) 307-637-6282 (Fax) 307-637-6366

MEMO

To: Honorable Mayor Patrick Collins and Members of the City Council
From: Seth Lloyd, Senior Planner
Subject: PUDC-24-119 / 3501 Forest Drive / Zone Change
Date: August 21, 2024

At Public Services Committee on August 20, 2024, there was discussion on the zone change request at Pershing and Forest. The impetus behind the zone change request was the applicant's desire for a larger-than-allowed electronic message center (EMC). There was some discussion on whether or not the zone change was the correct way to process this request. Public testimony was received expressing concerns about both the proposed sign and the proposed zoning.

Planning Commission

The Planning Commission was generally sympathetic to the signage request, but due to the potential impacts of redevelopment on the current neighborhood to the west, recommended denial of the zone change. Public testimony at the planning commission expressed concerns about both the proposed sign and the proposed zoning. Some of those commenting were against any increase to signage allowances, but there were a few who appeared to accept the signage increase, just not the zone change proposal.

Staff Recommendations

Due to the location of the property, current use, and redevelopment options, Staff recommended approval of the zone change. Should the Governing Body wish to approve an increase to signage allowances without approving the zone change, Staff recommends the Governing Body direct staff to craft a text amendment to allow for larger signage for all similarly situated properties.

Background

EMC's are any portion of a sign that is changed via digital methods, examples include signs like those found at Applebee's, Lincolnway Pawn, and Cheyenne Little Player's Theater. These signs are currently allowed in residential zones for certain non-residential uses such as schools, churches, and theaters (see UDC 6.5.4.c.1). However, these are only allowed at 40% of the allowed sign area, and in most residential zones the allowed sign area for these uses is 48sqft (therefore 19sqft for an EMC).

For a non-residential property owner wanting a larger-than-19sqft EMC in a residential zone, the following options could allow a larger EMC: zone change, variance, administrative adjustment, and code amendment. Attached are a list of some of the pros and cons of the various options.

Attachments:

1. Comparison of Processes Resulting in an Increase in Signage Allowances

Comparison of Processes Resulting in an Increase in Signage Allowances

Zone Change

Pros:

- Recognizes a property is suitable for higher-intensity uses and therefore higher-intensity signage
- Gives more options for redevelopment
- It makes it easier to expand a non-residential facility

Cons:

- Not all sites are suitable for rezoning
- Sites close to neighborhoods may not cleanly and clearly meet all review criteria
- Redevelopment near a neighborhood could have a significant impact on the neighborhood

Variance

Pros:

- Applies to properties on a case-by-case basis
- Recognizes uniqueness of the property (such as being adjacent to a major street)
- Does not allow overly-impactful development into (or near to) a residential neighborhood

Cons:

- Variances are a 'high bar' to clear – an applicant must prove:
 - Unique property conditions
 - True hardship (not just convenience)
 - The relief is the minimum necessary
 - The relief is in harmony with the intent of the code
- Potential for consistency issues if only occasionally granted

The best practice in land use law is to change the code if variances are being granted for 'common sense' purposes instead of true variance criteria purposes.

Administrative Adjustment

Pros:

- Applies to properties on a case-by-case basis
- Recognizes uniqueness of the property (such as being adjacent to a major street)
- Does not allow overly-impactful development into (or near to) a residential neighborhood
- Does not have nearly as high a bar to clear to receive approval (compared to a variance)
- Allows for 'common sense' solutions for circumstances where the proposal is 'close enough' to the requirement

Cons:

- Limited in scope – this is meant to be minor relief, not a major allowance change
- Lacks public process

NOTE: for this request, the desired sign area is beyond of the scope of the administrative adjustment.

Code Amendment

Pros:

- Applies fairly to all properties in the City
- Allows for a signage increase without the potentially excessive action of a zone change
- Allows for a signage increase without having to clear the 'high bar' set for variances

Cons:

- Application to the entire City may have unintended consequences

Typically, applicants are not directed to request code amendments so that the code does not become overly crafted to specific projects and properties.